

**BEFORE THE FEDERAL MARITIME COMMISSION
WASHINGTON, D.C.**

DOCKET NO. 25-14

WAY 2 GO CARGO CORP.,

Complainant,

v.

OAK WAY CARGO, LLC,

Respondent.

**COMPLAINANT, WAY 2 GO CARGO CORP.'S
PROPOSED FINDINGS OF FACTS**

Respectfully submitted,

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**COMPLAINANT, WAY 2 GO CARGO CORP.'S
PROPOSED FINDINGS OF FACTS**

Complainant, Way 2 Go Cargo Corp. ("Way2Go" or "Complainant"), by and through the undersigned counsel, hereby submit the following Proposed Findings of Facts:

I. Identities of Relevant Individuals and Entities

1. Way 2 Go Cargo Corp. is a Florida entity and a duly licensed Ocean Transportation Intermediary ("OTI") holding an FMC license number 027779. (Complaint ¶¶ 3, 4; Delphino Decl. at ¶ 11 (CX0818), Exhibit "E" (CX0837)).

2. Way 2 Go Cargo LTDA ("Way2Go Brazil") is a foreign profit corporation with its principal place of business based in Brazil. Way2Go Brazil functioned as the operational arm of Way2Go, employing personnel who conducted sales, coordinated shipments, and interfaced with customers on behalf of Way2Go. (Delphino Decl. at ¶ 12 (CX0818)).

3. Ernani Ferraz ("Ernani") currently serves as Way2Go's President and is a 51% shareholder of both Way2Go and Way2Go Brazil. (Complaint at ¶ 5; Delphino Decl. at ¶ 3, 13 (CX0817-0818)).

4. Way2Go's other shareholder is Way2Go Logistics Eireli Corp. ("Logistics"), a Foreign Profit Corporation that is based in Brazil and registered to do business in Florida. (Delphino Decl. at ¶ 9, 10 (CX0618), Exhibit "D" (CX0835)).

5. Logistics is wholly owned by Nanoei Alves ("Nanoei") who is also Way2Go's Vice President. (Delphino Decl. at ¶ 8 (CX0818)).

6. Nanoei's husband, Raphael Alves ("Raphael") previously served as Way2Go's President and Co-Treasurer. Before resigning from Way2Go, Raphael handled sales and rate negotiations and communicated with customers and carriers, among other duties at Way2Go. (Delphino Decl. at ¶¶ 4, 5 (CX0817)).

7. Diego Santana (“Diego”) previously exercised operational and managerial responsibilities at Way2Go. (Delphino Decl. at ¶ 6 (CX0817)).

8. Diego and Raphael resigned from all of their positions at Way2Go on April 15, 2025. (Delphino Decl. at ¶ 7 (CX0818); Exhibit “B” (CX0830-0831)).

II. The Oak Companies

9. Before leaving Way2Go, Raphael formed Oak Way Cargo LLC (“Oak Way”) in Florida in February 2025 (Raphael 5/26 Tr. p. 11:19-12:3 (CX0014-0015); Exhibit “2” (CX0180-0182)).

10. Before leaving Way2Go, Diego formed Oak Bridge Way LTDA (“Oak Brazil”) in Brazil in January 2025. (CX0665-0667); (Raphael 5/26 Tr. p. 18:19-20 (CX0021)).

11. Diego transferred his ownership interest in Oak Brazil to Raphael in 2026, based on the Brazilian public record indicating Oak Brazil (identification number 58.809.226/0001-18) is now owned by Raphael and was re-named “Oak Way Cargo LTDA.” (CX0668-0670).

12. Raphael is the sole owner, manager, and decision-maker for Oak Way and Oak Brazil (together the “Oak Companies”). (Raphael 5/26 Tr. p. 18:22 (CX0021)).

13. The Oak Companies share the same email domain address: @oak-cargo.com (Raphael 5/26 Tr. p. 38:7-9 (CX0041); 113:7-10 (CX0116)) and the same website: oak-cargo.com. (*Id.* p. 108:16-109:6 (CX0111-0112); Exhibit “17” (CX0118-0119)).

14. Without distinguishing between Oak Way and Oak Brazil, their website describes the companies collectively as “a freight forwarder specializing in end-to-end shipping” that “act as a link between exporters and shipping companies, ensuring that each stage of the logistics chain—from origin to destination—occurs with excellence, clarity, and predictability.” *Sobre*, Oak Cargo, <https://oak-cargo.com/sobre/> (last visited Sept. 3, 2026). (CX0118).

15. Oak Way has never been licensed by the FMC. (Raphael 5/26 Tr. p. 43:17-19 (CX0046)).

16. Oak Way previously applied for an FMC license but discontinued the application. (Raphael 5/26 Tr. p. 43:20-45:13 (CX0046-0048)).

17. Oak Brazil obtained a foreign NVOCC registration in September 2025. (Raphael 5/26 Tr. p. 45:20-46:24 (CX0048-0049)).

III. Oak Way's Operations

18. Oak Brazil shares an office space with Nanoeci's company, Logistics, in Rio de Janeiro, Brazil. (Raphael 5/26 Tr. p. 27:5-28:3 (CX0030-0031)).

19. Logistics hires the employees who work for Oak Brazil, and the workers are paid by Oak Brazil. (Raphael 5/26 Tr. p. 29:13-30:11 (CX0032-0033)). Oak Way does not have any of its own employees. (*Id.* at p. 10:21-11:3 (CX0013-0014); 12:22-14:8 (CX0015-0017)).

20. Four of Oak Brazil's seven employees formerly worked at Way2Go. (Raphael 5/26 Tr. p. 34:13-35:3 (CX0037-0038)).

21. Oak Way issues bills of lading (Raphael 5/26 Tr. p. 42:5-7 (CX0045); 52:8-10 (CX0055)); sends invoices to and receives payment from customers (*Id.* at p. 29:17-30:4 (CX0032-0033); 39:11-15 (CX0042)); and pays common carriers (*Id.* at 63:9-64:6 (CX0066-0067)).

22. Employees working in Oak Brazil's office communicate with clients using the Oak Companies' shared email domain address (Raphael 5/26 Tr. p. 39:16:40:2 (CX0042-0043)); communicate with common carriers using Oak Way's INTTRA account (Raphael 6/5 Tr. p. 60:17-61:5 (CX0309-0310)); and generate shipping documents bearing Oak Way's name using ShipThis (Raphael 5/26 Tr. p. 51:3-51:11 (CX0054); 70:11-14 (CX0073)).

23. At least until September 2025, Oak Way used the FMC licenses of other entities to conduct its operations. (Raphael 6/5 Tr. p. 34:11-35:1 (CX0483-0484)).

IV. Oak Way's Use of Way 2 Go's FMC License

24. Raphael opened Oak Way in February 2025 because the President of Way2Go removed his access to Way2Go's accounts. (Raphael 6/5 Tr. p. 13:2-9 (CX0462)).

25. Raphael planned to use Oak Way to "save clients" from Way2Go's President. (Raphael 6/5 Tr. p. 13:21-25 (CX0462)).

26. Initially, Raphael opened a bank account unknown to Way2Go's President for Way2Go's customers to make payments in an account only Raphael had access to. (Raphael 6/5 Tr. p. 14:4-9 (CX0463). As soon as he resigned from Way2Go, Raphael cancelled that Bank of America account. (Raphael 5/26 Tr. p. 149:10-150:3 (CX0152-0153)).

27. As soon as Raphael and Diego resigned effective immediately, Way2Go's President requested that they return control and access over Way2Go's systems, accounts, and operations. (Delphino Decl. at ¶ 14 (CX0818), Composite Exhibit "F" (CX0839-0852)).

28. Way2Go did not receive anything from Raphael and Diego, and soon after, Way2Go lost access to its ShipThis, INTTRA, and email domain. (Delphino Decl. at ¶¶ 14-16 (CX0818-0819)).

29. Without access to its email domain and shipping management platforms, Way2Go was unable to continue communicating with clients and carriers, tracking shipments, paying freight fees, and otherwise performing any services it had already sold to various customers. (*Id.* at ¶17 (CX0819)).

30. Raphael was recently ordered by a Brazilian court to turn over access to Way2Go's email domain. (Raphael 6/5 Tr. p. 85:14-86:12 (CX0534-0535)).

31. Oak Way claims that it then took over Way2Go's shipments because customers were distressed after not hearing back from Way2Go about their shipments and contacted Raphael requesting his assistance. (Raphael 5/26 Tr. p. 56:14-57:5 (CX0059-0060); 131:2-12 (CX0134)).

32. Oak Way testified that Raphael's wife, Nanoei, asked him to finalize the shipments. (Raphael 6/12 Tr. p. 6:15-7:21 (CX 0677-0678)).

33. As early as April 21, 2025, Oak Way contacted Way2Go customers, instructing them to make payment to Oak Way for Way2Go Shipments. (Raphael 6/5 Tr. p. 11:22-12:24 (CX0460-0461); Exhibit "29" (CX0726-0727)).

34. Oak Way received information from customers to identify their Way2Go shipments, and Oak Way would receive their payments and pay the shipowners to release their cargo. (Raphael 6/12 Tr. p. 10:9-18 (CX0681)).

35. Oak Way, using Way2Go-issued bills of lading, created new shipping documents for Way2Go's shipments, including new bills of lading bearing Oak Way's name, received payment for those shipments from Way2Go customers, and paid any freight fees owed to common carriers so the shipments would be released at the port of destination. (Raphael 5/26 Tr. p. 63:9-64:10 (CX0066-0067); 48:1-49:13 (CX0051-0052); Exhibit "10" (CX0194-0200)).

36. Oak Way issued HBLs in Oak's name without any FMC license or registration number. Raphael expressly confirmed that the HBLs Oak created for Way2Go shipments contained no license number. (Raphael 5/26 Tr. p. 50:6-16 (CX0053); Exhibit "10" (CX0199-0200)).

37. Oak Way also issues invoices bearing Oak Way's name and logo, and those invoices contain no FMC license or registration number (*Id.* p. 50:17-51:2 (CX0053-0054)).

38. Oak Way contacted common carriers to modify the shipper and notify party information on the bookings for Way2Go shipments that had not left their port of origin to reflect the Oak Companies' information instead. This was done so that Oak Way could pay the tariffs for those shipments and ensure they were released at the port. (Raphael 6/5 Tr. p. 72:6-19 (CX0521)).

39. Oak Way produced two spreadsheets identifying shipments initiated by Way2Go and “Finalized by Oak” (the “Way2Go Shipments Lists”). (Raphael 5/26 Tr. p. 75:3-12 (CX0078); (CX0213; CX0214)).

40. Oak Way’s spreadsheets identify at least 179 unique shipments that started at Way2Go and were taken over by Oak Way. (CX0213; CX0214).

41. Oak Way admits that it left Way2Go as a consignee on many of the shipments because “it was a Way2Go shipment.” (Raphael 6/5 Tr. p. 72:20-23 (CX0521)).

42. Oak Way used Way2Go’s FMC license for the shipments it took over from Way2Go. (Raphael 6/5 Tr. p. 73:5-8 (CX0522)).

43. Raphael used Oak Way to take responsibility for Way2Go’s shipments in order to maintain his reputation with customers. (Raphael 5/26 Tr. p. 71:2-72:13 (CX0074-0075)).

44. Oak Way told a customer that their shipment with Way2Go “was endorsed” to Oak Way and directed the customer to make their payment to Oak Way’s account instead. (Raphael 5/26 Tr. at Exhibit “11” (CX0201)).

45. At the customer’s request, Oak Way modified a Way2Go bill of lading bearing Way2Go’s FMC license number to add Oak Way’s name and address, so the customer would have a receipt of its payment to Oak Way for that the shipping service it had originally hired Way2Go for. (Raphael 5/26 Tr. p. 64:4-20 (CX0067); Exhibit “11” (CX0209)).

46. Oak Way did not have authority to take over any of Way2Go’s shipments. (Raphael 6/12 Tr. p. 10:21-11:7 (CX0681-0682)).

47. Oak Way had to communicate with the common carrier CMA CGM S.A. (“CMA”) to modify the booking information on Way2Go’s shipments. (Raphael 6/5 Tr. p. 60:1-4 (CX0509); 71:3-73:8 (CX0520-0521)).

48. Oak Way had to use Way2Go's CMA Service Contract #25-1534 (the "CMA Service Contract") to take over Way2Go's shipments. (Raphael 6/5 Tr. p. 64:1-65:8 (CX0513-0514)).

49. On June 2, 2025, after he had resigned from Way2Go, Raphael executed an amendment to the CMA Service Contract in June of 2025, maintaining Way2Go as the "Merchant" that is "a duly licensed and bonded NVOCC." (Raphael 5/26 Tr. p. 97:8-98:24 (CX0100-0101); Exhibit "16" (CX0116)).

50. On September 23, 2025, after Oak Brazil obtained a foreign NVOCC registration, Raphael amended the CMA Service Contract, replacing Way2Go with Oak Brazil as the "Merchant." (Raphael 6/5 Tr. p. 63:21-25 (CX0312)); Raphael 5/26 Tr. Exhibit "16" (CX0276-0277)).

51. In the September 23 amendment to the CMA Service Contract, Oak Brazil certifies that it is a "duly licensed and bonded NVOCC" and that it "published a tariff and surety bond number SU61400, dated June 01, 2019, issued by UNITED STATES FIRE INSURANCE COMPANY on June 01, 2019." (Raphael 5/26 Tr. Exhibit "16" (CX0276-0277)).

52. That surety bond belongs to Way2Go. (CX0097, CX0017).

53. Oak Brazil is not a licensed OTI, it only has a foreign registration number. (CX0193).

54. Way2Go customers paid Oak Way for the shipments it took over from Way2Go. Those payments were made to Oak Way's account at Bank of America. (Raphael 6/12 Tr. p. 11:8-19 (CX0682)).

55. Oak Way produced documents confirming payments received from customers for Way2Go shipments (the "Payment Confirmations"). (Raphael 5/26 Tr. p. 87:24-88:17 (CX0090); 91:20-93:4 (CX0094); Exhibit "14" (CX0015-0056); Exhibit "15" (CX0057-0075)).

56. The Payment Confirmations show that customers sometimes paid Oak Way for multiple Way2Go shipments at once. (*Id.* 94:4-9 (CX0097)).

57. Based on the sum of amounts reflected in the Payment Confirmations, Oak Way received \$416,767.75 from customers for Way2Go's shipments. (Raphael 5/26 Tr. p. 87:24-88:17 (CX0090-0091); 91:20-93:4 (CX0094-0096); Exhibit "14" (CX0015-0056); Exhibit "15" (CX0057-0075)).

58. Oak Way paid costs associated with these shipments on Way2Go's behalf as a "favor" to Way2Go. (Raphael 5/26 Tr. p. 85:14-21 (CX0088)).

59. Oak Way intentionally produced records that are incomplete and omit information in its possession. The spreadsheets produced by Oak omitted payment dates, amounts, and other transaction information. (Raphael 6/5 Tr. p. 52:24-53:9 (CX0501-0502)).

60. Beyond the Way2Go shipments, Oak Way has and continues to originate its own shipments. (Raphael 6/5 Tr. p. 21:12-17 (CX0470); 35:20-36:1 (CX0484-0485)).

61. Oak Way initiated over 1,000 of its own shipments in 2026 alone, which are identified in the "All Oak Shipments" spreadsheet produced in discovery. (Raphael 6/5 Tr. p. 22:22-23:7 (CX0471-0472); Exhibit "24" (CX0550)).

62. Oak Way produced thousands of shipping documents prepared in connection with Oak-originated shipments, including delivery notices, arrival notices, house bills of lading, and invoices bearing the Oak Way name and logo. (CX1002-7013).

63. Oak Way claims to be operating under the foreign NVOCC registration number held by Oak Brazil, but admits that it operates no differently than if it were licensed. (Raphael 5/26 Tr. p. 107:25-108:14 (CX0110-0111)).

64. When asked why Raphael qualified Oak Brazil's FMC registration when he did not own Oak Brazil, he testified: "Because I needed the FMC license." (Raphael 5/26 Tr. p. 105:23-106:25 (CX0108-0109)).

65. In several instances, Oak Way issues shipping documents with Oak Way Cargo LLC's name and the Oak Brazil registration number, but with no mention of Oak Brazil. (*See e.g.* CX2500; CX2507; CX2515; CX2522; CX2530; CX2539; CX2537; CX2551; CX2558; CX2565; CX2585; CX2598; CX2599; CX2603; CX2610; CX2616; CX2623; CX2630; CX2637; CX2644; CX2652; CX2658; CX2663; CX2671; CX2679; CX2686; CX2693; CX2700; CX2708; CX3746; CX4977; CX5077; CX6928).

66. Oak Way purchases space on a carrier ship and sells it to clients at a higher rate (Raphael 6/12 Tr. p. 14:21-15:1 (CX0485-0486)); and makes a profit on each container it ships (Raphael 5/26 Tr. p. 86:6-12 (CX0089)).

67. Oak Way uses a SCAC code, which identifies the entity issuing the HBL, that belongs to Logistics: "WTGF." Way2Go never had its own, and Oak Way continues using WTGF on Oak Way-generated HBLs because "it makes no sense for us to change it now." (Raphael 5/26 Tr. p. 139:24-142:8 (CX0142-0145)).

68. Although Oak Way refers to itself as "an agency or an agent of Oak Brazil," the arrangement is only a verbal agreement with no revenue-sharing terms (Raphael 5/26 Tr. p. 17:5-18:8 (CX0020-0021)), and Oak US remits none of the collected funds to Oak Brazil (*Id.* at 22:2-24:11 (CX0025-0027)).

Dated: September 4, 2026.

Respectfully submitted,

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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing was filed via electronic mail upon the Office of the Secretary at secretary@fmc.gov and served upon all counsel of record for OAK WAY CARGO, LLC at ron@hink.legal on this 4th day of September 2026.

BY: /s/ Jennifer S. Roldan
Jennifer Santos Roldan, Esq.